



CHAPTER 60.

An Act to authorise the acceptance and administration by certain Government Departments and Local Authorities of Gifts for the settlement or employment on land of men who have served in His Majesty's Forces.

A.D. 1916.

[22nd December 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) It shall be lawful for the Board of Agriculture and Fisheries or for the council of any county or county borough to accept any gift by will or otherwise to be applied wholly or mainly for the settlement or employment in agriculture on land in England or Wales of men who have served in any of His Majesty's naval or military forces, and to hold any land or estate or interest in land, the subject of any such gift and to administer the trusts affecting the gift, and for the purpose of those trusts to borrow money on the security of the trust property, so, however, that all expenses incurred by the Board or the council in relation to any such trust shall be defrayed out of the trust property or the proceeds or income thereof, or out of money borrowed on the security of the trust property :

Power to accept and administer gifts for settlement of ex-sailors and soldiers on land.

Provided that land so given to the Board shall not be deemed to be acquired by the Board under the Small Holding Colonies Act, 1916, unless the gift is expressly made for the purposes of that Act.

6 & 7 Geo. 5.
c. 38.

(2) Any assurance under this Act to the Board or to a council shall not be deemed to be an assurance to a charitable use within the meaning of the Mortmain and Charitable Uses Act, 1888.

51 & 52 Vict.
c. 42.

(3) Subsection (1) of this section shall apply to Scotland subject to the following modifications :

For references to the Board of Agriculture and Fisheries, land in England and Wales, and county boroughs, references to

A.D. 1916. the Board of Agriculture for Scotland, land in Scotland, and
— royal parliamentary and police burghs shall be respectively
substituted.

(4) Subsection (1) of this section shall apply to Ireland
subject to the following modifications:—

For references to the Board of Agriculture and Fisheries,
and to land in England and Wales, references to the Depart-
ment of Agriculture and Technical Instruction for Ireland, and
to land in Ireland shall be respectively substituted.

Short title and
saving.

2.—(1) This Act may be cited as the Sailors and Soldiers
(Gifts for Land Settlement) Act, 1916.

(2) Nothing in this Act shall be construed as prejudicing
any right of accepting gifts which any such department or
council as aforesaid may possess independently of this Act.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.